

REPUBLIC OF THE PHILIPPINES
SENATE
PASAY CITY

Impeachment Court

IN THE MATTER OF:

Case No. 004-2026

THE IMPEACHMENT TRIAL OF VICE
PRESIDENT SARA ZIMMERMAN
DUTERTE

X-----X

RESPONSE

Respondent, in response to the proposal to change the order of presentation of evidence, through counsel, respectfully states:

1. On July 21, 2026, the Honorable Presiding Officer inquired from the parties whether they would be amenable to a modification in the current order of presentation of evidence, such that each Article be fully completed by both parties before proceeding to the next. Nonetheless, both parties were assured that should one of the parties disagree, then the prevailing order of presentation shall be maintained.
2. Respondent now informs this Honorable Court that she respectfully declines said proposal to amend the sequence of presentation of evidence because (a) it violates the rudiments of fair play and due process, (b) it goes against the matters discussed and agreed upon at the Pre-Trial Conference, (c) it defies the Pre-Trial Order issued by this Honorable Court, and (d) it shifts the burden of proving the accusations from the prosecution to the respondent.
3. No less than the Constitution guarantees that no person shall be deprived of life, liberty, or property without due process of law. This constitutional guarantee of due process demands that the respondent be given a fair and reasonable opportunity to know the full scope of the accusations against her, the alleged evidence in support thereto, and to prepare a comprehensive defense. After all, it is the embodiment of the sporting idea of fair play.¹
4. Requiring the respondent to present evidence per Article before the Prosecution has fully presented its case-in-chief for all Articles undermines this constitutional guarantee and will deprive her of the opportunity to be fully informed of the nature and cause of the accusation against her and the evidentiary basis supporting them, if any. This right is a fundamental component of the right to due process as it ensures that an individual is not left to defend herself against any vague, partial, or even shifting accusations.

¹ Tinio v. Mina, G.R. No. L-29488, December 24, 1968

5. Thus, to alter the established order of trial at this juncture will constitute an arbitrary departure from the respondent's right to due process, protection against capricious proceedings, and the tenets of fair play.

6. The Pre-Trial Order, which this Honorable Court made clear will govern these proceedings, provides that the Prosecution must first complete the presentation of its evidence in all Articles before the respondent is called to answer. Considering that the purpose of pre-trial is to take the trial of the case out of the realm of surprise and maneuvering,² any deviation from this agreed upon sequence will undermine the binding force of the Pre-Trial Order and render the entire pre-trial proceeding meaningless. Modifying a pre-trial order during trial indubitably results in manifest injustice.³

7. Moreover, the constitutional presumption of innocence dictates that the burden of proof rests entirely on the Prosecution. This equally important constitutional right of the accused is precisely the reason why in our system of laws, the accused is not required to prove his or her innocence. Thus, unless the Prosecution is able to discharge this burden, the accused need not even answer any of the charges and must be acquitted.

8. To compel the respondent to undergo a trial in which she is required to present evidence per Article before the Prosecution has even discharged its burden to prove its accusations against her is to effectively shift this burden on the respondent, thereby violating her constitutional rights to due process and presumption of innocence. This reversal of burden simply has no place in our system of laws.

9. In People vs. Ansano,⁴ the Court said that Article III, Section 14 (2) of the 1987 Constitution provides that every accused is presumed innocent unless his guilt is proven beyond reasonable doubt. It is "a basic constitutional principle, fleshed out by procedural rules which place on the prosecution the burden of proving that an accused is guilty of the offense charged by proof beyond reasonable doubt. Corollary thereto, conviction must rest on the strength of the prosecution's evidence and not on the weakness of the defense."

10. The foregoing considerations assume even greater significance when viewed with what is now the settled doctrine that impeachment is not a purely political exercise but also a constitutional and legal process. An alteration of an established order of presentation of evidence at this stage will not only violate the respondent's constitutional rights but also weaken the integrity of the proceedings. Respondent believes that if the Honorable Court were to maintain the dignity of the impeachment process, strict observance of constitutional rights must always take precedence over any consideration of expediency and convenience.

² Zaldivar v. People of the Philippines, G.R. No. 197056, March 2, 2016

³ See Tiu v. Middleton, G.R. No. 134998, July 19, 1999

⁴ G.R. No. 232455, December 2, 2020

Respectfully submitted.

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Copy furnished:

The Prosecution Panel
House of Representatives
Batasang Pambansa Complex
Batasan Hills, Quezon City
4193-1-07

REPUBLIC OF THE PHILIPPINES)
MAKATI CITY)ss.

AFFIDAVIT OF FILING AND SERVICE

I, **LINDON MIGUEL C. BACQUEL**, of legal age, and subscribing under oath, depose and say:

1. I am an employee of the law firm of **FORTUN NARVASA & SALAZAR LAW OFFICES**, with business address at 23rd Floor, Multinational Bancorporation Centre, 6805 Ayala Avenue, Makati City;

2. On July 28, 2026, I served copies of "**COMMENT**" in the case entitled "**IN THE MATTER OF: THE IMPEACHMENT OF VICE PRESIDENT SARA ZIMMERMAN DUTERTE**" docketed as "**Case No. 004-2026**" before the **SENATE OF THE PHILIPPINES, PASAY CITY, IMPEACHMENT COURT**, in the following manner:

2.1 **SENATE OF THE PHILIPPINES**
Impeachment Court
Pasay City

_____ by electronic mail.

2.2 **The Prosecution Panel**
House of Representatives
Batasang Pambansa Complex
Batasan Hills, Quezon City

_____ by electronic mail.

Makati City, July 28, 2026

LINDON MIGUEL C. BACQUEL
[Redacted Signature]

SUBSCRIBED AND SWORN to before me this 28th day of July, 2026, affiant being personally known to me, exhibited his Driver's License No. C05-12-012462 and valid until October 5, 2033 as competent proof of his identity.

Doc. No. 110 ;
Page No. 23 ;
Book No. II ;
Series of 2026

4193-1-07

ALLAN JULIAN M. ANTENOR
Notary Public of Makati
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